
SiyaBusa ERP

INVESTOR & PARTNER DOCUMENTATION

SUBSCRIPTION AGREEMENT TEMPLATE

VERSION 2.0 | APRIL 2026

COMPANY

Masaphokati Technologies (Pty) Ltd

SHARE PRICE

R0.10 per Ordinary Share

CLASSIFICATION

Confidential

WE RULE. WE GOVERN. WE EMPOWER.

□ **LEGAL AGREEMENT TEMPLATE** — Subscription agreement governing the subscription for ordinary shares by seed investors.

SUBSCRIPTION AGREEMENT

This Subscription Agreement (this "Agreement") is entered into as of [DATE]

BY AND BETWEEN:

1. THE COMPANY:

Name: **Masaphokati Technologies (Pty) Ltd**
Registration No: [_____]
Address: [_____]
Represented by: **Sibusiso Mavuso**, Founder & Director
(hereinafter referred to as the "Company")

2. THE SUBSCRIBER:

Full Name: [_____]
ID Number / Entity Reg No: [_____]
Tax Number: [_____]
Address: [_____]
Email Address: [_____]
(hereinafter referred to as the "Subscriber")

BACKGROUND

- A. The Company is engaged in the development and commercial deployment of SiyaBusa ERP — a fully integrated enterprise resource planning platform with 17+ cloud-based business modules and 150+ data tables, serving small to large enterprises across Southern Africa;
- B. The Company is conducting a Seed Round capital raise to fund growth, team expansion, and customer acquisition;
- C. The Subscriber wishes to subscribe for ordinary shares in the Company at the subscription price set out herein;
- D. The Company has agreed to issue such shares to the Subscriber, subject to the terms and conditions of this Agreement.

ARTICLE 1: INTERPRETATION

Defined Term	Meaning
"Business Day"	Any day other than a Saturday, Sunday or public holiday in the Republic of South Africa
"Closing Date"	The date on which the conditions precedent have been fulfilled and the subscription price has been received
"Conditions Precedent"	The conditions set out in Article 4 of this Agreement
"MOI"	The Memorandum of Incorporation of the Company, as amended from time to time
"Ordinary Shares"	Ordinary shares in the capital of the Company with a par value of R0.001 each
"Seed Round"	The Company's seed fundraising round at a pre-money valuation of R10,000,000
"Subscription Price"	R0.10 (ten cents) per Ordinary Share
"Subscription Shares"	The Ordinary Shares subscribed for under this Agreement, as set out in Article 2
"Total Subscription Amount"	The aggregate amount payable for the Subscription Shares

ARTICLE 2: SUBSCRIPTION FOR SHARES

2.1 Subscription

Subject to the terms and conditions of this Agreement, the Subscriber hereby irrevocably subscribes for the following Subscription Shares:

Detail	Value
Number of Subscription Shares	[] Ordinary Shares
Subscription Price Per Share	R0.10 (ten cents)
Total Subscription Amount	R[]
Percentage of Issued Shares (post-closing)	[]%

2.2 Pre-Money Valuation

The Subscription Price is based on a pre-money valuation of **R10,000,000 (Ten Million Rand)**, with 100,000,000 (One Hundred Million) founder shares already issued.

2.3 Seed Round Allocation

The Seed Round consists of a maximum of 20,000,000 (Twenty Million) Ordinary Shares available across all subscribers, representing a maximum aggregate dilution of 16.67% on a fully diluted basis.

ARTICLE 3: PAYMENT

3.1 Payment Obligation

The Subscriber shall pay the Total Subscription Amount to the Company by no later than five (5) Business Days of the Effective Date.

3.2 Bank Details

Field	Detail
Bank	[_____]
Account Name	Masaphokati Technologies (Pty) Ltd
Account Number	[_____]
Branch Code	[_____]
Reference	SUB-[Subscriber Name]-2026

3.3 Receipt of Payment

The Company shall acknowledge receipt of payment in writing within two (2) Business Days.

ARTICLE 4: CLOSING

4.1 Conditions Precedent

The obligations of the Parties are subject to the following conditions precedent being fulfilled by the Closing Date:

1. Receipt of the Total Subscription Amount in the Company's bank account;
2. Completion of FICA due diligence to the Company's satisfaction;
3. Approval by the Company's board of directors of the share issuance;
4. Execution of the Shareholders Agreement by the Subscriber.

4.2 Closing Obligations

Upon fulfilment of the Conditions Precedent, the Company shall:

1. Issue the Subscription Shares to the Subscriber;
2. Update the Company's share register to reflect the Subscriber's shareholding;
3. Deliver a share certificate (or electronic equivalent) to the Subscriber.

4.3 Closing Date

Closing shall take place on [DATE] or such other date as the Parties may agree in writing.

ARTICLE 5: REPRESENTATIONS AND WARRANTIES OF THE COMPANY

The Company hereby represents and warrants to the Subscriber:

1. **Corporate Status:** The Company is a validly existing company under South African company law;
2. **Authority:** The execution of this Agreement has been duly authorised by the board of directors;
3. **Shares:** The Subscription Shares, when issued, will be validly issued, fully paid and non-assessable;
4. **No Conflict:** The Agreement does not conflict with the MOI or any other agreement of the Company;
5. **Litigation:** There are no pending or threatened material legal proceedings affecting the Company;
6. **Intellectual Property:** All software, trademarks and intellectual property used in the business are owned by or licensed to the Company.

ARTICLE 6: REPRESENTATIONS AND WARRANTIES OF THE SUBSCRIBER

The Subscriber hereby represents and warrants to the Company:

1. **Legal Capacity:** The Subscriber has full legal capacity to enter into this Agreement;

2. **No Violation:** The execution of this Agreement does not violate any other agreement binding on the Subscriber;
3. **Investment Intent:** The Subscriber is subscribing for investment purposes only and not for distribution;
4. **Risk Acknowledgement:** The Subscriber is aware of and accepts the risks associated with investing in an early-stage technology company;
5. **Information:** The Subscriber has had the opportunity to review the Company's business plan and financial projections, ask questions, and obtain information;
6. **Sophisticated Investor:** The Subscriber has sufficient financial sophistication to evaluate the merits and risks of this investment.

ARTICLE 7: COVENANTS

7.1 Company Covenants

The Company covenants and undertakes to the Subscriber that:

1. It will operate in accordance with the business plan shared with investors;
2. It will maintain proper books of account and financial records;
3. It will provide quarterly management accounts to investors within 30 days of quarter end;
4. It will not issue new shares at a price below R0.10 per share without investor consent;
5. It will use the subscription proceeds primarily for business growth.

7.2 Subscriber Covenants

The Subscriber covenants and undertakes to the Company that:

1. It will execute and comply with the Shareholders Agreement;
2. It will maintain strict confidentiality of all information received about the Company;
3. It will not transfer the Subscription Shares except in compliance with the Shareholders Agreement and applicable law.

ARTICLE 8: FICA COMPLIANCE

8.1 FICA Requirements

In compliance with the Financial Intelligence Centre Act 38 of 2001 (as amended), the Subscriber shall provide the following documents prior to Closing:

Document Type	Individual	Entity
Identity Document	Certified copy of SA ID or Passport	Certified IDs of all directors and beneficial owners >25%
Proof of Address	Utility bill / bank statement (not older than 3 months)	Registered office proof
Proof of Income	Latest payslip or tax return	Most recent audited financial statements
Tax Status	SARS tax clearance / tax number	Tax clearance certificate
Entity Docs	-	Company registration, MOI, shareholder register

8.2 Source of Funds

The Subscriber declares that the investment funds are lawfully obtained and not derived from any illegal activity.

ARTICLE 9: GENERAL PROVISIONS

9.1 Governing Law

This Agreement shall be governed by the laws of the Republic of South Africa.

9.2 Dispute Resolution

Disputes shall be resolved by arbitration in accordance with the Arbitration Act 42 of 1965.

9.3 Confidentiality

The contents of this Agreement and all information related to the investment are strictly confidential.

9.4 Entire Agreement

This Agreement, together with the Shareholders Agreement, constitutes the entire agreement between the Parties with respect to this investment.

9.5 Amendment

No amendment to this Agreement shall be effective unless in writing and signed by both Parties.

9.6 No Waiver

No failure or delay by either Party in exercising a right under this Agreement shall constitute a waiver of that right.

SIGNATURES

This Agreement is entered into by the Parties as of the date first written above.

FOR THE COMPANY: Masaphokati Technologies (Pty) Ltd Name: Sibusiso Mavuso Title: Founder & Director _____ Signature & Date	THE SUBSCRIBER: Full Name: _____ ID/Reg No: _____ No. of Shares: _____ Amount: R _____ _____ Signature & Date
--	---

Share Summary: Price R0.10/share | Pre-money valuation R10,000,000 | Seed Pool: 20,000,000 shares (16.67%) | Founder Shares: 100,000,000